

PCL327457 TD Bank USA N.A. vs. Douangdy, Alicia Z

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-04

Motion: Motion to Deem Admissions Admitted

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Re: TD Bank USA N.A. vs. Douangdy, Alicia Z

Case No.: PCL327457

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Motion to Deem Admissions Admitted

Tentative Ruling: To grant the motion and deem Admissions Nos. 1 through 8 admitted.

Facts

On or about January 7, 2026, Plaintiff served by mail Requests for Admissions, Set One on Defendant. The discovery was mailed to the address on Defendant's answer. As of the date of the filing of this motion, no response has been received by Plaintiff. Plaintiff now seeks to deem Admissions Nos. 1 through 8 admitted.

Authority and Analysis

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Defendant has failed to serve a timely response and Plaintiff has moved for an order to deem the admissions admitted.

Based on the foregoing, the Court grants Plaintiff's motion. The facts and allegations alleged in Requests for Admissions Nos. 1 through 8 of Plaintiff's First Set of Requests for Admission shall be deemed admitted.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the

court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.